Minutes of Negotiation

Globe RFQ No.:
SC No.: 1006649296

Supplier Name : Nihva Technologies
Proposal for : Dock Shelter

Negotiation participant : on 30-Jul-19 (date) by attendance [ ] by call [X]

Supplier : Ms. Varsha
Volkswagen : Mr. Rahul Sharma

Basics :

Volkswagen specifications: As per the scope of work provided by user department.

Company proposal: Quotation : SQT/18-19/01156R1 dated on 04.07.2019 (Quotation reference no) — Mail in offer date -04.07.2019 (date)

Amounts of proposal

Sr. No.	Scope of supply / Services (Brief description)	Unit	Quantity	Amounts of proposal before negotiation (INR/Euro)		Discount on offered amount % age	Amounts of proposal after negotiation (INR)	
				Unit rates (EUR)	Total Amount (EUR)		Unit rates (EUR)	Total amount (EUR)
1	**Retractable Aluminium Dock Shelter** **Retractable Aluminum Dock Shelter Size: - 3.4 Meter X 3.4 Meter The Side Curtain In Black Colour** **Also Includes installation charges**	EA	2	INR 174,000.00	INR 348,000.00	6%	164,000	328,000/-
2	**Strcture for dock shelter** **MS Structure for shelter mounting 100 X 50 X 3 mm PIPE**	EA	2	INR 35,000.00	INR 70,000.00	0%	35,000	70,000/-
	Sub total (before taxes)				**INR 418,000**			398,000/-
	Taxes	**Withholding tax (WHT) as applicable will be deducted on the Installation & Commissioning amount and WHT certificate will be issued by Skoda Auto India Pvt. Ltd (SAIPL) upon completion of work.**						
	CVD/ Customs duty							
	Excise Duty							
	CST (Against Form C)							
	VAT							
	GST			18%	INR 75,240		18%	71,640/-
	Service Tax							
	Any other tax							
	Total - with taxes				**INR 493,240**			469,640/-

Note / Remarks:

exchange rate applicable : [ ] - Yes/ No , if Yes : 1 EUR = - INR

Billing is made with a fixed all-inclusive price

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Minutes of Negotiation

Globe RFQ No.: 0

SC No.: 1006649296

Delivery Dates

Milestones	Request from Skoda	Supplier confirmation
Material delivery / Contract Period	**10.08.2019**	**10.08.2019**
		OK

Special Condition :
NA

Penalty Clause

Yes [X] No [ ]

Related to material supply :

If there will be an exeeding of dates marked with *) caused by you or other circumstances of delay

a penalty of 0.5% up to max. 5% of net order value is required after a period of 7 days after deadline.

Further claims are unaffected of this fixed penalty clause. That means a deduction referred to this penalty does not exist for further claims.

Related to service deliverables :

A penalty will be applicable immediately after deadline as agreed in the KPIs & technical discussions/ SLAs.
Further claims are unaffected of this fixed penalty clause. That means a deduction referred to this penalty does not exist for further claims.

Guarantee / Warranty/ Defect Liability Period : 24 Months from the date of goods receipts

Starts with completion and handover and final acceptance of entire craft and applies to a period of 24 months,

wear parts are excluded of guarantee.

VW Standard - 24 Months

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Minutes of Negotiation

Globe RFQ No.: 0

SC No.: 1006649296

Agreements

		Yes	No
1	Volkswagen India purchasing conditions are essential.	X	
2	All prices are fixed prices until scope of supply and services are completed. Any deviations will be discussed and applicable only if , mutually agreed	X	
3	Conditions agreed on are valid for all potential changes in scope of supply and services afterwards. Variations have to be indicated in revisional proposal.	X	
4	Only Purchasing department is authorized to give a go ahead/ LOI/ PO for any supply/ services. Users are not authorized to do that. If supplier supplies the goods and/or provides the services without a valid PO/ LOI then VW India is not responsible for any kind of payments and/ or commercial losses on account of executed work.	X	

Implementation of variations / extensions and release of manufacturing is relied to the commissioning of purchasing.

Pricing/ Packaging Term

	offered	agreed
FH (Free delivery at SAIPL / Applicable Site)	x	
DAP (Delivered at place, duty unpaid)		
FCA		
FOB (Free on board)		
Exworks		
Including proper packing for sea transportation		
Including proper packing for air transportation		

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Minutes of Negotiation

Globe RFQ No.: 0

SC No.: 1006649296

Payment Milestones:

Payment after 30 days from the date of - 50%. Adv., 40% against delivery and 10% after installation
1) completion of work
2) Submission of Invoice and necessary backup documents
3) Assignment acceptance by user department

Withholding tax (WHT) as applicable will be deducted on the Installation & Commissioning amount and WHTcertificate will be issued by Škoda Auto India Pvt. Ltd (SAIPL) upon completion of work.

General

attachments to minutes Yes [X] no [ ]

- The attached general terms and conditions of purchasing & RFQ will be deemed as accepted in case of no revert.
- Based on RFQ and technical discussions, it is considered that you have understood, accepted the scope and other terms and conditions

1) The listed prices/fees are fixed prices.
2) The agreed rates/fees are fixed for the duration of contract or this particular project - no change in the unit rate would be made on account of change in market conditions etc. Example : Fuel cost, Currency Fluctuations, Raw Material Prices, Agreed unit rate will be remain same in case VW wants to take any additional service from you for this particular project
3) Writing this MON amount does not entitle you to claim the full amount without the performance of activities / work.
4) Prices and Conditions agreed in this Minutes of Negotiation Document are final. No other condition from supplier's/service provider's proposal having direct or indirect effect on commercials / prices will be applicable.
5) Contract can be terminated with 30 days advance notice from both parties. and in case the contract is terminated due to any reason, then the amount of this agreement shall stand closed on pro-rata basis.
6) The supplier shall not be entitled for any remuneration in the case of termination for reasons exclusively on the side of the Contractor.
7) For on-site contracts - In non production days or plant shut down payments will be done for the number of days the plant will be operational. VW will not be paying any compensation for the non-working days.
8) For onsite employees supplier have to follow Facility Regulations, HR, Safety policies, regulations and guidelines during the contract period.
9) Service provider need discuss and confirm all Deliverables, Method, Assumptions, Exceptions etc with user before submitting the final commercials on MON document later no such claims will be accepted

Legally binding signature of supplier | Name of signatory: Arjun. Patil | Date: 30/07/2019